Ex tempore judgment

AUGUSTINE MARUVA TIRIVANGANA
versus
MARGRET MUNYARADZI GUNDIDZA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 14 July 2026

Opposed Application

T. D. Njeni, for the applicant
M. Mudara, for the respondent

MAMBARA J:

[1] This is an application for variation of a consent order granted under case number HC 6779/17, by which the respondent was granted a usufruct over Stand 2916, Dzivarasekwa Extension, Harare. The applicant now seeks cancellation of that usufruct on the basis of loss of employment, remarriage, alleged hostility in the household, and an assertion that the respondent has other properties.

[2] The background is short. The parties are former spouses. Upon divorce, the applicant consented to the respondent's continued occupation through a usufruct. That order was not provisional. It embodied a concluded arrangement and conferred on the respondent a vested limited real right. Authority cited in the papers rightly emphasizes that consent orders are binding and are not to be lightly disturbed: see, among others, *Washaya* v *Washaya* 1990 (1) ZLR 195 (S), *David Richard Kempen* v *Carol Kempen* SC 14/16, and, by persuasive analogy, *Firestone South Africa (Pty) Ltd* v *Genticuro* AG 1977 (4) SA 298 (A).

[3] Even if I were to assume, in the applicant's favour, that the more flexible "good cause" and "material change in circumstances" approach discussed in *Habis* v *Macheka* HH 405/21 may, by analogy, apply outside maintenance into this proprietary setting, the applicant still bears a heavy burden. He must show more than regret, inconvenience, or an adverse turn in

his private affairs. He must establish a cogent legal basis for unsettling a vested right created by consent.

[4] He has not done so. Loss of employment and remarriage are unfortunate, but they remain personal circumstances. They do not, without more, extinguish a usufruct. As the papers correctly cite from *Zvinavashe* v *Zvinavashe* HH 437/19, a usufruct is a limited real right: the usufructuary has the use and enjoyment of the property, while the owner retains the bare dominium. That right is not terminable merely because the owner now wishes to resume exclusive occupation.

[5] The allegation that the respondent owns or can readily occupy three other properties is inadequately proved. The annexures relied upon are, at best, thin and inconclusive. They do not amount to title deeds, deeds registry searches, agreements of sale, proof of transfer, or proof of habitable alternative accommodation. On these papers, material non-disclosure is not established. The suggestion that the respondent deliberately misled the court remains speculative.

[6] The complaint of animosity fares no better. Domestic friction, even serious friction, is not in itself a recognised ground for cancelling a real right. Indeed, the applicant's own papers show that peace-order type proceedings have already featured in the parties' disputes. That merely highlights the obvious point: where coexistence has become difficult, the law provides other remedies, including peace or protection-oriented proceedings in the magistrates' court, rather than the destruction of vested proprietary rights.

[7] In truth, this application is flimsy. It was launched under desperate circumstances, but desperation is not doctrine. The applicant asks the court to convert hardship into entitlement and hostility into extinguishment of a usufruct. The law does not permit that. What is before me is not a proven case for variation; it is an impermissible attempt to escape the consequences of a binding consent order because life has become harder and shared occupation has become unpleasant. That is insufficient.

[8] The application therefore fails.

[9] It is ordered that:

(a) the application for variation of the order under HC 6779/17 be and is hereby dismissed; and

(b) there shall be no order as to costs.

MAMBARA J…….

Chadyiwa & Associates, applicant's legal practitioners
Legal Directorate, respondent's legal practitioners